

## 23STCV16047 23STCV16047

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Case Number: 23STCV16047 Hearing Date: September 23, 2026 Dept: 11

Final Approval of Class Action Settlement

Department SSC-11

Jerman Contreras v. Behrens & Associates, Inc.

Case

No.: 23STCV16047

Hearing: September 23, 2026

### TENTATIVE RULING

The Court GRANTS final approval and awards/approves  
as follows:

(1) \$175,833.33 for attorney fees to Class  
Counsel, Petronelli  
Law Group, PC; (2) \$5,792 for attorney costs to Class  
Counsel; (3) enhancement award of \$5,000 to the class representative,  
Jerman  
Contreras; (4) \$22,500 (75% of \$30,000 PAGA penalty) to the LWDA;  
and (5) \$8,800 for settlement  
administration costs to Atticus Administration, LLC.

Class Counsel is ordered to lodge a proposed Order  
consistent with this ruling and a separate judgment containing the class  
definition, release language, and a statement that no class members opted out

of the settlement by \_\_\_\_\_, 2026.

## BACKGROUND

Plaintiff

Jerman

Contreras sues Defendant Behrens & Associates, Inc. for alleged wage and hour violations. Plaintiff seeks to represent a class of Defendant's current and former non-exempt employees.

Plaintiff filed this putative class and representative action on July 10, 2023, alleging wage and hour violations, including failure to provide meal and rest periods, failure to pay overtime and minimum wages, failure to timely pay wages, failure to provide accurate itemized wage statements, failure to reimburse business expenses, and derivative claims under California's Unfair Competition Law and the Private Attorneys General Act ("PAGA").

On

December 13, 2023, the Parties attended an all-day mediation before Will Klatte, which ultimately resulted in settlement. The long-form Stipulation of Settlement ("Settlement Agreement") was filed with the Court on March 28, 2025.

On

August 26, 2025, the Court issued a "checklist" to the parties pertaining to deficiencies in the proposed settlement. In response, the parties filed further briefing, including the Second Amended Settlement Agreement attached to the Supplemental Declaration of Christian J. Petronelli filed December 19, 2025. All references below are to that agreement.

On February

17, 2026, the Court granted preliminary approval of the settlement.

Notice was given to

the Class Members as ordered. (See Declaration of Ann Linton ("Linton Decl.").)

Now before the

Court is the Motion for Final Approval of the Settlement.

## SETTLEMENT CLASS DEFINITION

“Settlement

Class”: For settlement purposes only, the Parties agree to the certification of a class pursuant to California Code of Civil Procedure § 382 defined as: all former and current nonexempt employees who worked for Behrens in California at any time from July 10, 2019 through August 1, 2024 (Members of the "Settlement Class" may also be referred to as "Class Members"). (¶II.T)

“Class

Period” means the period from July 10, 2019 through August 1, 2024. (¶II.E)

“PAGA

Aggrieved Employees” means all current and former non-exempt employees who worked for Defendant in California at any time during the PAGA Period. (¶VII.B)

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“PAGA

Period” means the period between December 14, 2022 and August 30, 2024. (¶VII.B)

#### TERMS OF SETTLEMENT AGREEMENT

The essential terms are as follows:

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The Settlement

Amount is \$527,500, non-reversionary. (¶II.S)

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The

Net Settlement Amount (“Net”) estimated at preliminary approval (\$289,166.67) is the Settlement Amount minus the following:

Up

to \$175,833.33 (33 1/3%) for attorneys’ fees (¶XIV.A);

Up

to \$10,000 for attorneys' costs (Ibid.);

Up to \$5,000 for a service payment to the class representative (§XV);

Up to \$10,000 for costs of settlement administration (§VIII); and

Payment of \$30,000 PAGA penalty (75% or \$22,500 to the LWDA) (§XVII).

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The Employer Taxes will be paid separately by Defendant in addition to and at the same time as the Settlement Amount. (§II.L)

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Settlement  
Class members shall not be required to submit a claim form to participate in the Settlement. (§X)

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Individual Settlement Payment Calculation: The lump sum payment to each member of the Settlement Class not excluding him/herself will be determined by dividing the Net Settlement Amount by the total number of Eligible Workweeks worked by all member by the number of Eligible Workweeks by the individual Class Member as determined by the Settlement Administrator in accordance with Section X, less any applicable withholding taxes based on the Parties stipulated allocation of the Net Settlement Amount as provided for in Section XVI. (§XII.A) Periods of non-membership in the Class (i.e., in an exempt position or outside California or outside the Class Period) are excluded from the workweek calculation. (§X)

o PAGA Payments: PAGA Aggrieved Employees regardless of whether they opt out of the class portion of the Settlement, shall receive their portion of the PAGA Payment. The amount each PAGA Aggrieved Employee will receive will be calculated by dividing each PAGA Aggrieved Employee's

individual workweeks worked for Defendant in California during the PAGA Period, by the total workweeks of all PAGA Aggrieved Employees during the PAGA Period, and multiplying the resulting fraction by the 25% portion of the PAGA Payment allocated for distribution to the PAGA Members. (¶XII.A)

o Tax Allocation: The Net Settlement Amount shall be deemed and is allocated by the Parties as follows ("Net Settlement Allocation"):

(1) 33.33% as W-2 wages; (2) 33.34% as penalties; and (3) 33.33% as interest. (¶XVI)

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Response Deadline: The Notice shall provide the members of the Settlement Class with a sixty (60) day notice of all applicable dates and deadlines. (¶IX.A) This deadline applies to the submission of written objections (¶IX.B), requests for exclusion (¶IX.C), and workweek disputes ¶IX). For all re-mailed Notices, Settlement Class member's deadline to object or exclude themselves from the Settlement shall be sixty (60) days from the date the Notice is re-mailed. (¶IX.A)

o If 10% or more of the Class Members validly exclude themselves from the Settlement, Defendant will have the right, at its election, to rescind the Settlement and all actions taken in furtherance of it will thereby be null and void. (¶IX.E)

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Funding

of the Settlement: Within (30) calendar days after the Court grants Final Approval of the Settlement, Defendant shall deposit the total Settlement Amount, plus any Employer Taxes owed on the amount of that payment to be paid to the Class Members as wages, into an interest-bearing trust account for the benefit of Settlement Class members and Class Counsel, through the Settlement Administrator. (¶XII.B)

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Distribution:

Within fifteen (15) calendar days following the receipt of the Final Payment, the Settlement Administrator shall mail Class Members their pro rata portion of the Net Settlement Amount and their portion of the PAGA Payment (if any) from the Settlement Amount. Within that same time, the Settlement Administrator shall mail the Court approved enhancement award to Plaintiff and 75% of the

PAGA Settlement to the LWDA all from the Settlement Amount. Also, within the same deadline, the Settlement Administrator shall deduct its Administrative Costs from the Settlement Amount. (§XII.C) Within fifteen (15) calendar days following receipt of the Final Payment, the Settlement Administrator shall disburse the attorneys' fees and costs award approved by the Court to Class Counsel. (§XIV.A)

Uncashed Settlement Checks: Any settlement checks remaining uncashed after one hundred and eighty (180) days shall be turned over by the Settlement Administrator, with information for each Settlement Class member who failed to timely cash his/her settlement check, to California's Unclaimed Property Fund, as provided for in Title 10 of Part 3 of the California Code of Civil Procedure, beginning with Code of Civil Procedure section 1300, in the name of the Settlement Class member so that Settlement Class members may later claim such funds. (§XII.C)

The settlement administrator will be Atticus Administration, LLC. (§II.Q)

The proposed Settlement Agreement was submitted to the LWDA on October 30, 2024. (Declaration of Christian J. Petronelli ISO Prelim, Exhibit 2.) The revised settlement was submitted on December 19, 2025. (Supplemental Declaration of Christian J. Petronelli ISO Prelim, Exhibit 4.)

Releases:

o Release

as to All Settlement Class Members. Upon the date that Defendant fully funds the Class Settlement, Plaintiff and all members of the Settlement Class, except those that make a valid and timely request to be excluded from the Settlement Class and Settlement, waive, release, discharge, and promise never to assert in any forum any and all wage-related claims against Defendant, and its former, present and future owners (including Donald Behrens, Melanie Behrens, and Maximilian Behrens), parents, subsidiaries, and all of its current, former and future officers, directors,

members, managers, employees, consultants, partners, shareholders, joint venturers, agents, successors, assigns, accountants, insurers, or legal representatives, (collectively referred to herein as the "Releasees"), that were alleged in the Action for the Class Period or claims which arise out of or relate to the facts asserted in the action for the Class Period, including but not limited to: (1) failure to provide meal periods (2) failure to provide rest breaks; (3) failure to pay regular wages and overtime; (4) failure to pay minimum wage; (5) failure to pay waiting-time penalties; (6) failure to provide accurate wage statements; (7) failure to reimburse business expenses; and (8) unfair business practices under Business and Professions Code Section 17200 based on the foregoing alleged violations (collectively, the "Class Members' Released Claims"). The Class Members' Released Claims include claims meeting the above definition(s) under any and all applicable statutes, including without limitation California Labor Code sections §§ 201, 202, 203, 204, 226, 226.7, 510, 512, 558, 1174, 1194, 1194.2, 1197, 1198, 2800, 2802; the California Unfair Competition Act, and in particular, California Bus. and Prof. Code §§ 17200 et seq, as well as the applicable Industrial Welfare Commission Wage Orders. (¶VII.A)

#### § "Covered

Class Claims" means any and all claims and/or causes of action alleged in, or arising out of the facts asserted in, the operative First Amended Complaint, including the following: (1) failure to provide meal periods (2) failure to provide rest breaks; (3) failure to pay regular wages and overtime; (4) failure to pay minimum wage; (5) failure to pay waiting-time penalties; (6) failure to provide accurate wage statements; (7) failure to reimburse business expenses; and (8) unfair business practices under Business and Professions Code Section 17200 based on the foregoing alleged violations. (¶II.F)

#### o Release

of PAGA Claims: Upon the date that Defendant fully funds the Class Settlement, all current and former non-exempt employees who worked for Defendant in California at any time between December 14, 2022 and August 30, 2024 (the "PAGA Period") shall be referred to as the "PAGA Aggrieved Employees" and will be issued a check for their share of the PAGA Amount, as defined below, regardless of whether they submit a timely request to be excluded from the class action portion of the Settlement. All PAGA Aggrieved Employees shall be deemed to have released and discharged the Releasees from all claims for civil penalties under PAGA that are based on the Labor Code violations pled in the operative First Amended Complaint in the Action or Plaintiff's letter to the

California Labor and Workforce Development Agency ("LWDA") dated December 14, 2023, or which could have been pled in the operative First Amended Complaint in the Action based on the factual allegations therein, that arose during the PAGA Period (the "PAGA Released Claims"). (¶VII.B)

o "Releasees"

means: Defendant, and its former, present and future owners (including Donald Behrens, Melanie Behrens, and Maximilian Behrens), parents, subsidiaries, and all of its current, former and future officers, directors, members, managers, employees, consultants, partners, shareholders, joint venturers, agents, successors, assigns, accountants, insurers, or legal representatives. (¶VII.A)

o Named Plaintiff will additionally provide a general release and §1542 waiver. (¶VII.C)

#### ANALYSIS OF SETTLEMENT AGREEMENT

A.

Does a presumption of fairness exist?

The Court preliminarily found in its Order of February 17, 2026 that the presumption of fairness should be applied. No facts have come to the Court's attention that would alter that preliminary conclusion.

Accordingly, the settlement is entitled to a presumption of fairness as set forth in the preliminary approval order.

B.

Is the settlement fair, adequate, and reasonable?

The settlement was preliminarily found to be fair, adequate and reasonable. Notice has now been given to the Class.

Reaction

of the class members to the proposed settlement.

Number of Class Members: 94 (Linton Decl., ¶4.)

Number of notice packets mailed: 94 (Id. at ¶6.)

Number of undeliverable notices: 1 (Id. at ¶10.)

Number of opt-outs: 0 (Id. at ¶14.)

Number of objections: 0 (Ibid.)

Number of participating class members: 94 (Ibid.)

Average individual payment: \$3,189.96 (Id. at ¶8.)

Highest individual payment: \$12,717.02 (Ibid.)

The

Court finds that the notice was given as directed and conforms to due process requirements. Given the reactions of the Class Members to the proposed settlement and for the reasons set for in the Preliminary Approval order, the settlement is found to be fair, adequate, and reasonable.

#### C. Attorney Fees and Costs

Class

Counsel requests an award of \$175,833.33 in fees and \$5,792 in costs. (Memo ISO Attorneys'

Fees at 1:3-6.) The Settlement Agreement provides for up to \$175,833.33 (33 1/3 %) for attorney fees and \$10,000 in costs (¶XIV.A).

"Courts

recognize two methods for calculating attorney fees in civil class actions: the lodestar/multiplier method and the percentage of recovery method." (Wershba v. Apple Computer, Inc. (2001) 91 Cal.App.4th 224, 254.) Here, class counsel request attorney fees using the percentage method, as crosschecked by lodestar. (Memo ISO Attorneys' Fees at pp. 1-12.)

In

common fund cases, the Court may employ a percentage of the benefit method, as cross-checked against the lodestar. (Laffitte v. Robert Half Int'l, Inc. (2016) 1 Cal.5th 480, 503.) The fee request represents one-third of

the gross settlement amount, which is the average generally awarded in class actions. (See In re Consumer Privacy Cases (2009) 175 Cal.App.4th 545, 558, fn. 13 [“Empirical studies show that, regardless whether the percentage method or the lodestar method is used, fee awards in class actions average around one-third of the recovery.”].)

Class

Counsel has provided information, summarized below, from which the lodestar may be calculated:

Attorney

Rates

Hours

Totals

Christian  
J. Petronelli

\$850

219.8

\$171,237.50

Mitchel  
Vanderpool

\$500

Jennifer  
Reyes

\$175

Totals

219.8

\$171,237.50

(Declaration of Christian J. Petronelli ISO Final, ¶¶53-55, Exhibit 2.)

Counsel's

percentage-based fee request is higher than the unadjusted lodestar, and would represent application of a multiplier of approximately 1.03x to reach.

Here,

the \$175,833.33 fee request

represents a reasonable percentage of the total funds paid by Defendant. Notice of the fee request was provided to class members in the notice packet, and no one objected. (Linton Decl., ¶14, Exhibit A.)

As

for costs, Class Counsel is requesting a cost amount of \$5,792. This is less than the \$10,000 cap provided

for at preliminary approval, which was disclosed to Class Members in the Notice and not objected to. (Linton

Decl., ¶14, Exhibit A.) Counsel

represents that costs include,

but are not limited to: filing fees, service of documents, and mediation fee. (Petronelli Decl. ISO Final, ¶56, Exhibit 3.) The costs incurred appear to be reasonable in amount and reasonably necessary to this litigation.

Based on the above, the

recommendation is to award \$175,833.33 in

fees and \$5,792 in costs.

#### D. Incentive Award

The class representative, Jerman Contreras, seeks an enhancement payment of \$5,000 for his contributions to the action. (Memo ISO Attorneys' Fees at 14:4-6.)

In connection with the final fairness

hearing, named Plaintiffs must submit declarations attesting to why they should

be entitled to an enhancement award in the proposed amount. The named Plaintiffs must explain why they

"should be compensated for the expense or risk he has incurred in conferring a

benefit on other members of the class."

(Clark v. American Residential Services LLC (2009) 175

Cal.App.4th 785, 806.) Trial courts

should not sanction enhancement awards of thousands of dollars with “nothing more than pro forma claims as to ‘countless’ hours expended, ‘potential stigma’ and ‘potential risk.’

Significantly more specificity, in the form of quantification of time and effort expended on the litigation, and in the form of reasoned explanation of financial or other risks incurred by the named plaintiffs, is required in order for the trial court to conclude that an enhancement was ‘necessary to induce [the named plaintiff] to participate in the suit . . . .’” (Id.

at 806-807, italics and ellipsis in original.)

Plaintiff represents that his contributions

to this litigation include: meeting with his attorneys on multiple occasions to review pleadings, discovery, sample time and pay records, as well as to review and execute declarations in support of the Class’ claims and to execute multiple versions of the Class settlement, reviewing personal employment records, attending the mediation in person, and reviewing the settlement. He estimates spending 40-50 hours on the case. (Declaration of Jerman Contreras ISO Final, ¶¶5-10.)

Based on the above,

as well as the benefits obtained on behalf of the class, the recommendation is to grant the enhancement payment in the amount of \$5,000 to Plaintiff.

E.

Settlement Administration Costs

The settlement

administrator, Atticus, is requesting \$8,800 for the costs of settlement administration. (Linton Decl., ¶15.) This is less than the estimated cost of \$10,000 provided for in the settlement agreement (¶VIII) and disclosed to class members in the Notice, to which there were no objections. (Linton Decl., ¶14, Exhibit A.) Based on the above, the recommendation is to award costs in the requested amount of \$8,800.